

STATE OF NEW YORK

8341--A

2025-2026 Regular Sessions

IN SENATE

June 3, 2025

Introduced by Sens. STAVISKY, GALLIVAN -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to establishing a temporary practice authorization program for certain medical professionals to practice in underserved areas; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 6907 of the education law, as amended by chapter
2 994 of the laws of 1971 and as renumbered by chapter 50 of the laws of
3 1972, subdivision 2 as amended by chapter 315 of the laws of 1981,
4 subdivision 4 as amended by chapter 62 of the laws of 1989 and subdivi-
5 sion 5 as amended by chapter 110 of the laws of 1972, is amended to read
6 as follows:
7 § 6907. Limited permits. 1. Graduate nurses. (a) A permit to practice
8 as a registered professional nurse or a permit to practice as a licensed
9 practical nurse may be issued by the department upon the filing of an
10 application for a license as a registered professional nurse or as a
11 licensed practical nurse and submission of such other information as the
12 department may require to (i) graduates of schools of nursing registered
13 by the department, (ii) graduates of schools of nursing approved in
14 another state, province, or country or (iii) applicants for a license in
15 practical nursing whose preparation is determined by the department to
16 be the equivalent of that required in this state.
17 ~~[2-]~~ (b) Such limited permit shall expire one year from the date of
18 issuance or upon notice to the applicant by the department that the
19 application for license has been denied, or ten days after notification
20 to the applicant of failure on the professional licensing examination,
21 whichever shall first occur. Notwithstanding the foregoing provisions

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 of this ~~[subdivision]~~ paragraph, if the applicant is waiting the result
2 of a licensing examination at the time such limited permit expires, such
3 permit shall continue to be valid until ten days after notification to
4 the applicant of the results of such examination.

5 ~~[3-]~~ (c) A limited permit shall entitle the holder to practice nursing
6 only under the supervision of a nurse currently registered in this state
7 and with the endorsement of the employing agency.

8 ~~[4.—Fees-]~~ (d) The fee for each limited permit shall be thirty-five
9 dollars.

10 ~~[5-]~~ (e) Graduates of schools of nursing registered by the department
11 may be employed to practice nursing under supervision of a professional
12 nurse currently registered in this state and with the endorsement of the
13 employing agency for ninety days immediately following graduation from a
14 program in nursing and pending receipt of a limited permit for which an
15 application has been filed as provided in this section.

16 2. Temporary practice authorization program. (a) There is hereby
17 established a temporary practice authorization program for the purpose
18 of allowing the temporary practice of registered professional nurses and
19 licensed practical nurses in a county or facility designated by the
20 federal government as medically underserved. Provided, however, that an
21 individual who becomes licensed through the temporary practice authori-
22 zation program must live in New York state and commit to work for the
23 entity for which they were temporarily authorized to practice for a
24 period of no less than three years upon such applicant becoming perma-
25 ently licensed.

26 (b) Registered professional nurse or licensed practical nurse. (i) A
27 person who is currently licensed and in good standing in another state
28 or territory of the United States to practice as a registered profes-
29 sional nurse or a licensed practical nurse may be temporarily authorized
30 to practice such licensed profession pursuant to this article pending a
31 determination on licensure for which an application has been filed
32 pursuant to this article, provided: (1) such applicant has obtained the
33 endorsement of an employing health care facility that is authorized to
34 provide professional nursing services; (2) the position is located with-
35 in a county or facility designated by the federal government as
36 medically underserved; and (3) the applicant is not employed by an
37 employment agency as defined in subdivision two of section one hundred
38 seventy-one of the general business law.

39 (ii) Prior to commencing practice, the applicant and an authorized
40 representative of the employing facility shall jointly provide written
41 notice to the department, in a form and format acceptable to the depart-
42 ment that the applicant intends to practice in a county or facility
43 designated by the federal government as medically underserved and the
44 applicant shall pay a fee determined by the department. Such written
45 notification shall also include an attestation by the applicant and the
46 authorized representative of the employing facility that they have
47 reviewed the requirements for licensure in New York state and that they
48 reasonably believe such applicant to meet such requirements. Such tempo-
49 rary authorization shall only be applied for once and shall be granted
50 upon receipt of such notice and attestation and the payment of such fee
51 and shall expire in one hundred eighty days, or ten days after notifica-
52 tion that the applicant does not meet the qualifications for licensure
53 as a registered professional nurse or licensed practical nurse, whichev-
54 er shall occur first.

55 (iii) The department may deny an application submitted pursuant to
56 this section if the department determines that the employing facility

demonstrates a pattern of endorsing applicants for temporary authorization who cannot become fully licensed because they do not meet the requirements for licensure.

3. Any person practicing as a registered nurse or licensed practical nurse in New York state pursuant to this section shall be subject to the personal and subject matter jurisdiction and disciplinary and regulatory authority of the board of regents as if such person is a licensee and as if the temporary authorization pursuant to this section is a license. Such person shall comply with applicable provisions of this title and the rules of the board of regents relating to professional practice, professional misconduct, disciplinary proceedings and penalties for professional misconduct. Failure to adhere to the notification provisions of this section may be considered unauthorized practice pursuant to section sixty-five hundred twelve of this title.

§ 2. Section 6525 of the education law, as added by chapter 987 of the laws of 1971, paragraph 1 of subdivision 1 as amended by chapter 133 of the laws of 1982 and subdivision 4 as amended by chapter 62 of the laws of 1989, is amended to read as follows:

§ 6525. Limited permits. 1. Physicians. Permits limited as to eligibility, practice and duration, shall be issued by the department to eligible applicants, as follows:

~~[1-]~~ (a) Eligibility~~[+]~~. The following persons shall be eligible for a limited permit:

~~[(1+)]~~ (i) A person who fulfills all requirements for a license as a physician except those relating to the examination and citizenship or permanent residence in the United States;

~~[(2+)]~~ (ii) A foreign physician who holds a standard certificate from the educational council for foreign medical graduates or who has passed an examination satisfactory to the state board for medicine and in accordance with the commissioner's regulations; or

~~[(3+)]~~ (iii) A foreign physician or a foreign intern who is in this country on a non-immigration visa for the continuation of medical study, pursuant to the exchange student program of the United States department of state.

~~[2-]~~ (b) Limit of practice. A permittee shall be authorized to practice medicine only under the supervision of a licensed physician and only in a public, voluntary, or proprietary hospital.

~~[3-]~~ (c) Duration. A limited permit shall be valid for two years. It may be renewed biennially at the discretion of the department.

~~[4-]~~ (d) Fees. The fee for each limited permit and for each renewal shall be ~~[one hundred five dollars]~~ as determined by the department.

2. Temporary practice authorization program. (a) There is hereby established a temporary practice authorization program for the purpose of allowing the temporary practice of medicine in a county or facility designated by the federal government as medically underserved.

(b) A person who is currently licensed and in good standing in another state or territory of the United States to practice medicine may be temporarily authorized to practice medicine pursuant to this chapter under the supervision of a New York state licensed physician, pending a determination on licensure for which an application has been filed pursuant to section sixty-five hundred twenty-four of this article, provided: (i) such applicant has obtained the endorsement of an employing health care facility that is authorized by New York state law to provide medical services; (ii) the position is located within a county or facility designated by the federal government as medically underserved; (iii) the applicant has graduated from a duly accredited school

1 of medicine located in the United States or Canada; (iv) such applicant
2 is currently board certified by a physician certification board accepta-
3 ble to the department; and (v) the applicant is not employed by an
4 employment agency as defined in subdivision two of section one hundred
5 seventy-one of the general business law.

6 (c) Prior to commencing practice, the applicant and supervising physi-
7 cian shall jointly provide written notification to the department, in a
8 form and format acceptable to the department, that such applicant
9 intends to practice in a county or facility designated by the federal
10 government as medically underserved and the applicant shall pay a fee
11 determined by the department. Such written notification shall also
12 include an attestation by the applicant and the supervising physician
13 that they have reviewed the requirements for licensure in New York state
14 and that they reasonably believe such applicant to meet such require-
15 ments. Such temporary authorization shall only be applied for once and
16 shall be granted upon receipt of such notice and attestation and the
17 payment of such fee and shall expire in one hundred eighty days or ten
18 days after notification that the applicant does not meet the qualifica-
19 tions for licensure as a physician, whichever shall occur first.

20 (d) The department may deny an application submitted pursuant to this
21 section if the department determines that the supervising physician or
22 employing organization demonstrates a pattern of endorsing applicants
23 for temporary authorization who cannot become fully licensed because
24 they do not meet the requirements for licensure.

25 (e) Any person practicing as a physician in New York state pursuant to
26 this subdivision shall be subject to the personal and subject matter
27 jurisdiction and disciplinary and regulatory authority of the board of
28 regents and the state board for professional medical conduct established
29 pursuant to section two hundred thirty of the public health law as if
30 they were a licensee and as if the authorization pursuant to this subdi-
31 vision were a license. Such physician shall comply with applicable
32 provisions of this title, the public health law, the rules of the board
33 of regents, the state board for professional medical conduct established
34 pursuant to section two hundred thirty of the public health law, and the
35 regulations of the commissioner and the commissioner of health, relating
36 to professional misconduct, disciplinary proceedings and penalties for
37 professional misconduct. Failure to adhere to the notification
38 provisions of this subdivision may be considered unauthorized practice
39 pursuant to section sixty-five hundred twelve of this title.

40 (f) An individual who becomes licensed through the temporary practice
41 authorization program must live in New York state and commit to work for
42 the entity for which they were temporarily authorized to practice for a
43 period of no less than three years upon such applicant becoming perma-
44 nently licensed.

45 § 3. Not later than June thirtieth of the second year following the
46 effective date of this act, the commissioner of education shall provide
47 the governor, the temporary president of the senate, the minority leader
48 of the senate, the speaker of the assembly, the minority leader of the
49 assembly, the chair of the senate standing committee on higher educa-
50 tion, and the chair of the assembly committee on higher education with a
51 report of the program established by this act. Such report shall, at a
52 minimum, include the number of temporary authorizations granted by
53 region or setting and the number and rate of conversion of temporary
54 authorizations which became full licenses. The report shall be made
55 publicly available on the department of education's website.

1 § 4. This act shall take effect on the one hundred eightieth day after
2 it shall have become a law and shall expire 3 years after such effective
3 date when upon such date the provisions of this act shall be deemed
4 repealed. Effective immediately, the addition, amendment and/or repeal
5 of any rule or regulation necessary for the implementation of this act
6 on its effective date are authorized to be made and completed on or
7 before such effective date.